

“‘[A] demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.’” (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 313 [quoting *Baright v. Willis* (1984) 151 Cal.App.3d 303, 311] [citations omitted] [internal quotation marks omitted].)

“[S]tatutes of limitation do not begin to run until a cause of action accrues.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) “[A] cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” (*Ibid.* [quoting *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397].). “An exception is the discovery rule, which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Norgart, supra*, 21 Cal.4th at p. 389.) “Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.)

“In order to raise the issue of belated discovery, the plaintiff must state when the discovery was made, the circumstances behind the discovery, and plead facts showing that the failure to discover was reasonable, justifiable and not the result of a failure to investigate or act. Once belated discovery is pleaded, the issue of whether plaintiff exercised reasonable diligence in discovering the negligent cause of the injury is a question of fact.” (*Bastian v. County of San Luis Obispo* (1988) 199 Cal.App.3d 520, 527 [citations omitted].) “Once properly pleaded, belated discovery is a question of fact.” (*Ibid.*) A demurrer may be sustained only where “the trial court could determine as a matter of law that failure to discover was due to failure to investigate or to act without diligence.” (*Ibid.*)

Based on the date the implant was placed (December 27, 2023), Defendant argues that Plaintiff’s complaint had to have been filed within one year of that date. However, it is not clear to the Court that Plaintiff knew or should have known of her injury on that date. She alleges that the implant was “found to be crooked” and that “the position of the implant is in a[n] angle.” The face of the complaint is somewhat ambiguous as to when Plaintiff discovered these facts. The implication is that Plaintiff discovered the implant was crooked following the implant procedure. The date of that discovery is not clear. The Court cannot conclude that the Plaintiff’s claim is necessarily barred as a matter of law. That said, the Complaint fails to adequately allege delayed discovery. As a consequence, the Court sustains the Defendant’s Demurrer with leave to amend additional facts which would support a finding of belated discovery.

Defendant is ordered to prepare and e-file a proposed order that conforms to the tentative ruling within five days from the date of the hearing. Plaintiff shall file an amended complaint no later than ten (10) days from the Notice of Entry of Order.

15. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**
FILED BY: WESTERN DENTAL SERVICES, INC.
TENTATIVE RULING:

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s motion to strike. The motion relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s

complaint. Plaintiff is in *pro per*.

Defendants move to strike Plaintiff's punitive damages allegations on the grounds that she has not sought leave of court to assert punitive damages in an action arising out of professional negligence pursuant to CCP § 425.13(a) and her punitive damages allegations are insufficient under Civil Code § 3294.

The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion to strike an entire paragraph, cause of action, count or defense. (CRC Rule 3.1322.)

Code of Civil Procedure section 435.5 requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a), emphasis added.)

The meet and confer declaration of Joseph W. Gaertner filed with Western Dental in support of their demurrer satisfies the requirements of CCP § 435.5. The notice of motion, however, fails to comply with California Rule of Court 3.13.22(a). That said, the Plaintiff's form complaint is brief and identification of the punitive damages references therein is fairly straightforward.

For the following reasons, the motion is **granted**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

CCP § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Analysis

Western Dental seeks to strike Plaintiff's punitive damages allegations, as a plaintiff cannot seek punitive damages against a medical professional for actions arising out of professional negligence without leave of the court. (Code Civ. Proc. § 425.13.)

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714 [quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189].)

Here, the misconduct alleged in the complaint appears to be directly related to Western Dental's rendering of professional services. Thus, Plaintiff must comply with the requirements of section 425.13 before seeking punitive damages on her claim for negligence.

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiff would appear to be able to seek punitive damages for her intentional tort claim, though the actual character of her intentional tort claim is not clear from her complaint.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Here, Plaintiff's intentional tort claim is not adequately pleaded, and therefore does not support the claim for punitive damages.

Furthermore, when seeking punitive damages against a corporation like Defendant, Plaintiff must allege "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation." (Civ. Code §3294.) There are no allegations in Plaintiff's complaint regarding the conduct of an officer, director, or managing agent of Western Dental. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

The Motion is **granted**, with leave to amend.

Defendant is ordered to prepare and e-file a proposed order that conforms to the tentative ruling within five days from the date of the hearing. Plaintiff shall file an amended complaint no later than ten (10) days from the Notice of Entry of Order.